IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of a petition of Appel in terms of Section 331(1) of the Code of Criminal Procedure Act No. 15 of 1979.

The Democratic Socialist Republic of Sri Lanka

Complainant

Vs

Migel Hettige Winston Anasly Thisera *alias* Migel Hettige Winston Anasly Thisera

Accused

Court of Appeal Case No:
CA/HCC/0065/2023
High Court of Gampaha Case No:
HC 96/21

AND NOW BETWEEN

Migel Hettige Winston Anasly Thisera *alias* Migel Hettige Winston Anasly Thisera

Accused – Appellant

Vs

The Hon. Attorney General
Attorney General's Department
Colombo 12.

Respondent

Before : **P. Kumararatnam, J.**

Pradeep Hettiarachchi, J.

Counsel : Sumith Senanayake, P.C. with Nisali Balachandra & Kavindi Kodithuwakku for the Accused – Appellant.

Shezon Mahboob, S.C for the State

Argued on : 12.01.2026

Decided on : 13.03.2026

Pradeep Hettiarachchi, J

Judgment

1. The Accused-appellant (hereinafter referred to as "the Appellant") has preferred this appeal against the sentence imposed on him by the Learned High Court Judge of Gampaha on 13-03-2023.The Appellant was indicted before the High Court of Gampaha for committing grave sexual abuse on a boy under 18 years of age.

2. On 26-11-2021 the Indictment was served on the Appellant and accordingly the trial was fixed for 09-05-2022. However, on 09-05-2022, the trial was postponed as the High Court Judge was on official leave. Thereafter, the trial was postponed on several occasions due to various reasons and when the matter was mentioned on 31-10-2022 it was informed that the Appellant was willing to conclude the trial by tendering a plea.

3. On 13-03-2023 when the charge was readout to the Appellant, he pleaded guilty and accordingly was convicted and imposed following sentences.
    - 9 years rigorous imprisonment and a fine of Rs.10, 000/- with a default sentence of 2 months rigorous imprisonment.
    - Furthermore, the Appellant was ordered to pay Rs.300, 000/-- as compensation to the victim with a default sentence of 5 months rigorous imprisonment.

4. Being aggrieved by the sentence imposed on the Appellant by the High Court, the Appellant preferred the present appeal to this Court.

5. As directed by this Court, both parties have filed their respective Written Submissions.

6. The Appellant submitted that the sentence imposed by the Learned High Court Judge is unreasonable, unjustifiable and unacceptable given that the Appellant had pleaded guilty at the first instance. The Appellant has prayed before this Court to set aside the sentence of 9 years rigorous imprisonment imposed by the High Court on 13-03-2023 and to suspend the same.

7. In support of the Appellant's position, the Counsel for the Appellant placed much reliance on the reasoning of the Supreme Court in ***SC Reference 03/2008*** and the cases that followed the said determination.

8. Citing ***SC Reference 03/2008***, it was submitted that the sentence imposed by the High Court Judge is contrary to Article 4 (c), 11 and 12 (1) of the Constitution of the country.

9. Opposing the Appellant's contention, the Respondent submitted that the minimum mandatory sentence for the offence of which the Appellant was charged was7 years and maximum is 20 years and therefore learned trial Judge has acted in terms of law and has duly passed a lawful sentence of 9 years having considered both mitigating and aggravating circumstances. It is further submitted that there is no question of law that arises from the sentencing of the Learned Trial Judge as it is within the four corners of the law.

10. Furthermore, the Respondent submitted that since the Learned Trial Judge has considered all aggravating factors and imposed a lawful sentence it does not warrant the intervention of the Court of Appeal.

11. In this case, the Appellant was 33 years old at the time of committing the offence. The victim was 15 years old and was a student when he faced this ordeal. It can be observed that on the date of the incident the victim was in his school uniform and was at home as his school vehicle had not come as scheduled. The Appellant was a neighbor and also known to the victim. The Appellant had come to the victim's house with his own infant

child and had abused the victim. When this alleged act was being committed the victim's mother suddenly came home and the Appellant had left the house at that time.

12. In deciding the appropriateness of the sentence, Court will normally pay its attention to the aggravating and mitigating circumstances and then imposed the sentence. In this case the aggravating circumstances can be stated as follows;
    - Age of the victim
    - The relationship between victim and the Appellant
    - The fact that the Appellant came to the victim's house carrying the Appellant's infant child and had committed the offence.
    - Only when the victim's mother returned home the Appellant left the place.
    - The age gap between the Appellant and the victim.

13. The mitigating factors are mainly that the Appellant has no previous convictions, he had pleaded guilty at the first instance and also, he volunteered to pay compensation before pleading guilty.

14. Since the Appellant placed great reliance on ***SC Reference 03/2008*** and the cases which followed the said determination it is pertinent to consider the said determination in this context and its applicability to the case in hand.

15. The unanimous opinion of the Court in ***SC Reference 03/2008*** was that;

    "The minimum mandatory sentence in Section 362 (2) (e) is in conflict with Article 4 (c), 11 and 12 (1) of the Constitution and that the High Court is not inhibited from imposing a sentence that it deems appropriate in the exercise of its judicial discretion notwithstanding the minimum mandatory sentence."

16. In the said reference Justice P. A. Ratnayake held that:

    "*The minimum mandatory sentence in Section 364(2)(e) is in conflict with Article 4(c), 11, and 12(1) of the Constitution." "Article 80(3) of the Constitution only applies where the validity of an Act is called into question. However, Article 80(3) does not prevent a court from exercising its most traditional function of interpreting laws. Interpretation of laws will often require a court to determine the*

applicable law in the event of a conflict between two laws. This is a function that has been exercised by this court from time immemorial." In the event of a conflict between an ordinary law and the Constitution, the constitutional provisions must prevail over an ordinary law."

"The minimum mandatory sentence in Section 364(2) (e) of the Penal Code is in conflict with Article 4(e), 11 and 12 of the Constitution and the High Court is not inhibited from imposing a sentence that it deems appropriate in the exercise of its judicial discretion notwithstanding the minimum mandatory sentence."

17. This determination has done away with the minimum mandatory sentence which up to that time had prevented the trial Judges from imposing an appropriate sentence having considered the circumstances of the particular case tried by them. This was also followed in the case of ***Rohana alias Loku v Attorney General*** SC/Appeal/89A/2009 (Decided on 12-05-2011) and also in ***Ambagala Mudiyanselage Samantha Sampath v Attorney General*** SC/Appeal/ 17/2013 (Decided on 12-03-2015).

18. However, it must be emphasized that this discretion which is an inherent power of a Judge shall be exercised very cautiously in offences against the children in particular the offences of grave sexual abuse cases as cases of this nature against the children are on the rise.

19. Furthermore, it is important to consider the context within which the Supreme Court in the afore-cited cases has applied the reasoning in ***SC Reference 3 of 2008***. Both in ***Rohana alias Loku v Attorney General*** and in ***Ambagala Mudiyanselage Samantha Sampath v Attorney General***, the accused persons have been found guilty of committing an offence punishable under section 364(2) (e) of the Penal Code.

20. The facts of case in ***Rohana alias Loku v Attorney General*** are briefly as follows;

    The Prosecutrix has had a love affair with the Accused and due to the hostile environment in her family after her mother got to know about her continued association with the Accused, the Prosecutrix had asked the Accused to take her away and even threatened him that she would take poison and commit suicide if the Accused refuses or fails to take her away from her home. Consequently, the Accused had taken

her to his uncle's house which was within the walking distance from the Prosecutrix's house. After eloping, the Appellant and the Prosecutrix have on numerous occasions enjoyed sexual intimacy as consensual partners. Thereafter, the police had come and arrested the Accused. The Prosecutrix was 15 years and 3 months at the time the incident took place. It was also observed by the Supreme Court that the victim had been a reluctant witness against the Accused at the trial before the High Court.

21. Similarly, in ***Ambagala Mudiyanselage Samantha Sampath v Attorney General***, the Prosecutrix, who was 15 years old at that time, had got pregnant consequent to an affair with her sister's husband. The Prosecutrix's sister had gone abroad for foreign employment and the Accused and the married couple had no children. Thereafter, the Prosecutrix's parents had invited the Accused to come and live in the same house with them. After sometime, the Prosecutrix was found to be pregnant and her parents asked the Accused to leave the house; took her to another village and kept her there, with an older married couple who had no children, having in mind to hand over the baby to them when the child is born. Neither the parents nor the Prosecutrix informed the police about the said incident in the first instance and quite surprisingly, it was upon the information of some outsider that the police launched a search and found the Prosecutrix and the Accused. At the trial before the High Court, the Accused also pleaded guilty for the charge. Thereafter, the Prosecutrix gave birth to a baby girl at the Kuliyapitiya Base Hospital. It was mentioned in the birth certificate of the child that her father is the Accused. The Accused had been paying maintenance for the upkeep of the said child and had visited the child at the school as her father when called upon to do so and arranged the transport to and from the school.

22. One main factor taken into consideration by the Supreme Court in both the above cases when imposing a suspended term against the accused persons is the consensual nature of the relationship shared by the Accused and the Prosecutrix. And in ***Ambagala Mudiyanselage Samantha Sampath v Attorney General,*** the Court took into consideration the fact that there is an existing 3rd person in the picture, ie. the 10 years-old girl who is born and living in this world as a result of the Prosecutrix and the Appellant having had sexual intercourse and the adverse impact that it may have on the girl child if the Appellant is sent to jail.

23. However, in the present case, the Appellant was charged under section 365B (2)(b) of the Penal Code (as amended) and he has pleaded guilty to the said charge. The Appellant was 33 years old at the time of committing the offence and the victim was 15 years old. On the date of the incident, the victim was in his school uniform and was at home as his school vehicle had not come as scheduled. The Appellant being a neighbor of the victim had come to the victim's house carrying his own infant child and had performed oral sex on the victim. When this alleged act was being committed the victim's mother had suddenly come home and the Appellant had left the house at that time. Contrary to the above-mentioned cases, in the present case, there was no evidence that the victim had been a willing partner to the sexual act performed on him, nor was there any evidence to suggest that he had been in a relationship with the Appellant. The Appellant in the present case, had performed the aforesaid sexual act on the victim while being fully aware that the victim is a child.

24. In the aforesaid circumstances, it is clear that the facts of the present case could be distinguished from the above–mentioned cases that were heavily relied on by the Counsel for the Appellant. As such, this Court is of the view that the present case is not a fit case to apply the dictum in ***SC Reference 03/2008***.

25. Furthermore, in deciding an appeal of this nature, the Court shall not lose the sight of the intention of the legislature in imposing a minimum mandatory sentence with regard to sexual offences involving women and children. The legislature in its wisdom had introduced a new offence called 'grave sexual abuse' and prescribed a minimum mandatory sentence to be imposed on the offenders committing grave sexual abuse in order to strengthen the legal protection for victims-particularly children and women against sexual violence that does not constitute vaginal penetration.

26. The Section 365B (1) reads as follows:

> "*Grave sexual abuse is committed by any person who, for sexual gratification, does any act, by the use of his genitals or any other part of the human body or any instrument on any orifice or part of the body of any other person, being an act, which does not amount to rape under section 363, in circumstances falling under any of the following descriptions, that is to say-….*"

(2) (b) of the Section states:

"Commits grave sexual abuse on any person under eighteen years of age shall be punished with rigorous imprisonment for a term not less than seven years and not exceeding twenty years and with fine and shall also be ordered to pay compensation of an amount determined by court to the person in respect of whom the offence was committed for the injuries caused to such person."

27. Therefore, if this Court imposes a suspended term applying the rationale behind ***SC Reference 03/2008*** and the cases that followed it, without considering the context within which a particular crime was committed, it would defeat the very purpose of the legislature that introduced such amendment.

28. As already stated above, mitigating factors are that the Appellant has no previous convictions, he had pleaded guilty at the first instance and also, he volunteered to pay compensation before pleading guilty.

29. In imposing a sentence upon a convicted person, the Court is required to consider both mitigating factors and aggravating circumstances. The Court must also take into account the principle of deterrence and the sentence's overall impact on society.

30. In determining the deterrent value of a sentence, the Court must have due regard to the specific facts and circumstances of the case. This includes the nature of the offence, the manner in which it was planned and executed, and the motive for its commission. Furthermore, the Court must consider the conduct of the accused before, during, and after the offence, the nature of the weapons or means employed, and all other attendant circumstances relevant to the gravity of the crime.

31. The consideration of aggravating or mitigating circumstances is fundamentally relevant to assessing the seriousness of an offence. The weight accorded to these factors in sentencing may vary on a case-by-case basis and the Court maintains the discretion to consider any factor it deems relevant to the severity of the sentence. Consequently, the sentence imposed on an accused shall be proportionate to the gravity of the offence committed by the accused must be both carefully and cogently reasoned.

32. The following authorities emphasize the significance of imposing a sentence proportionate to the gravity of the offence and provide key guidelines to assist in determining an appropriate sentence.

33. In ***Attorney General vs. Mendis*** (1995) 1 SLR 138, Gunasekara, J. held that;

> *"Once an accused is found guilty and convicted on his own plea or after trial the judge in deciding on sentence, should consider the point of view of the accused on the one hand and the interest of society on the other. The nature of the offence committed the machinations and manipulations resorted to by the accused to commit the offence, the effect of committing such a crime insofar as the institution or organization in respect of which it has been committed, is concerned, the persons who are affected by such crime the ingenuity with which it has been committed and the involvement of others in committing the crime are matters which the judge should consider.*

34. As decided by the Indian Supreme Court in the case of ***Alister Anthony Pereira vs. State of Maharashta*** [2012] AIR 3802 (SC);

> *"Sentencing policy is an important task in the matters of crime. One of the prime objectives of criminal law is imposition of appropriate adequate just and proportionate sentence commenced with the nature and gravity of the crime and the manner in which the crime is done. There is no straight-jacket formula for sentencing an accused on proof of crime. The courts have evolved certain principles: Twin objectives of sentencing policy are deterrence and correction what sentence would meet the ends of Justice depends on the fact and circumstances of each case and the court must keep in mind the gravity of the crime, motive for the crime, nature of the offense and all other attendant circumstances. The principle of proportionality in sentencing is a crime duo is well entrenched in criminal jurisprudence. As a matter of law proportion between crime and punishment bears mostly relevant influence in determination of sentencing the crime to a full stop the court has to take into consideration all aspects including social interest and consciousness of the Society for award of appropriate sentence."*

35. In ***Illakotulena Gamaralalage Thilakarathna v Officer in Charge, Motor Traffic Division, Police Station, Kandy*** SC Appeal No. 173/2017, (Decided on: 22-10-2024) the Supreme Court observed that:

> *Consideration of aggravating or mitigatory circumstances generally, has relevance to the assessment of the seriousness of the offence. The appropriate effect on such consideration in sentence would depend on the circumstances of each case, in which the Court can take note of any factor it considers to aggravate or mitigate the imposed sentence. As such, the consideration of proportionality of the sentence to the gravity of the convicted offence, must be well reasoned.*

36. In ***Attorney General v Hewa Walimunige Gunasena*** CA/PHC/110/2012 (Decided on 12-02-2014) it was held by Sunil Rajapakshe J that;

> *After analyzing the submissions made by the Petitioner and the Accused-Respondent I am of the opinion that the facts relating to this case warrants that the accused should be severely dealt with. Therefore, a sentence of two years rigorous imprisonment suspended for ten years on the accused for a grave child abuse is a very lenient sentence considering the beastliness of the crime. When an offence of child abuse is proved victims of tender age and innocent behavior the sentence of imprisonment should be imposed severely. Further I hold two years R.I suspended for ten years is not adequate for the purpose of preventing the commission of further offences by the accused. Cases of indecent touching, threats by an older man on a small girl seem to attract custodial sentence.*

37. In Archbold: Sentencing Guidelines (2019), Thomson Reuters, on page 274, under the heading of applicability of guidelines on sexual offences, it is stated that;

> *"Starting points define the position within a category range from which to start calculating the provisional sentence.*
> *…… Once the starting point is established, the court should consider further aggravating and mitigating factors and previous convictions so as to adjust the*

sentence within the range. Starting points and ranges apply to all offenders, whether they have pleaded guilty or been convicted after trial."

38. It is keeping in mind the guidelines pronounced in the above-mentioned authorities that I shall proceed to deal with the present case.

39. As already mentioned above, the Appellant is a neighbor of the victim and at the time the victim faced this ordeal he was a school boy of 15 years old. The victim had been waiting for his school bus which had not come to pick him up as scheduled. And it was at that time the Appellant had come to the house of the victim and had abused the victim. The Appellant had left the place only when the victim's mother had come. The Appellant being a neighbor and a known person to the victim had clearly taken undue advantage of the trust reposed on him by the victim and his family and the Appellant. Also, it is needless to say that, the Appellant being a neighbor and a known person to the victim may have gained easy access to the victim which he had clearly misused.

40. When considering the aggravating factors, this Court should not lose the sight of the fact that the Appellant had committed this heinous crime on the victim who was a child at the time while still carrying his own infant which shows the disturbed mentality of the Appellant.

41. In the aforesaid circumstances, this Court is of the view that the aggravating circumstances of the present case and the public interest and the legislative intent in preventing crimes of this nature outweigh the mitigating factors such as the absence of pending cases against the Appellant, the age of the Appellant, pleading guilty to the charge and agreeing to pay compensation prior to pleading guilty. In other words, this Court is not convinced that there are compelling and convincing reasons to show any leniency towards the Appellant.

42. However, having regard to the Appellant's age, the fact that he has no prior convictions and that he has pleaded guilty to the offence and had agreed to pay compensation in the first instance and other attendant circumstances, with considerable reluctance I am inclined to show limited leniency. Accordingly, the sentence of 9 years' rigorous

imprisonment imposed on the Appellant is reduced to 7 years. The fine and compensation ordered by the Learned Trial Judge shall remain undisturbed.

43. Subject to the above variation in the sentence, this appeal stands dismissed. It is further ordered that the sentence imposed shall run from the date of the conviction.

Judge of the Court of Appeal

P. Kumararatnam,J

I agree,

Judge of the Court of Appeal